

Criminal Law, Investigation and Procedure Victoria
Investigation
Arrest
The law of arrest
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The law of arrest

[A.20] Introduction

Arrest and the power to arrest are fundamental concepts in our society, as liberty is the cornerstone of a free and democratic society. The right to personal liberty is, as Fullagar J has described it, “the most elementary and important of all common law rights”.¹ The right to personal liberty cannot be impaired or taken away without lawful authority and then only to the extent and for the time which the law prescribes.² To deprive a citizen of his or her liberty without being authorised by law is an act that might lead to civil and/or criminal liability on behalf of the arresting person.³ Where there are restraints imposed by law on powers of arrest, they will need to be scrupulously observed.⁴

In the *Charter of Human Rights and Responsibilities Act 2006* (Vic) s 21(1) provides that everybody has the “right to liberty⁵ and security”. By s 21(2), arbitrary arrest or detention are prohibited, and under s 21(3) no one can be deprived of their liberty “except on grounds, and in accordance with procedures established by law”. Section 21(5) requires that people arrested or detained on a criminal charge must be promptly brought to a court, tried without reasonable delay, or released. Note that s 21(6) prohibits automatic detention prior to trial and authorises release on bail subject to guarantees of appearance at trial. By s 21(7) everyone detained by arrest or detention is entitled to apply for a declaration or order regarding the lawfulness of their detention.

Arrest is the commencement of the process by which a person is brought before a court to answer a criminal charge. Whilst it may have a preventative function in instances where the reason for arrest is the finding of a person in the process of committing an offence, its ultimate objective is to secure the alleged offender's appearance before a court. It therefore becomes important to identify what is arrest, who has the power to arrest, what are the sources of the power to arrest and under what circumstances a person can be arrested.

[A.40] What is “arrest”?

The term “arrest” refers to the deprivation of a person's liberty, and it can take different forms depending on the situation confronting the arrester. It will commonly take the form of being compelled to go with police and accompany them to a police station, but can also include, for example, being imprisoned in a fixed place such as a room in a house⁶ or the back of a police divisional van. The New South Wales Court of Criminal Appeal has described arrest as occurring whenever it is made plain by what is said and done by a police officer that the suspect is no longer a free man.⁷ Words can be sufficient, but they are not always necessary – what must be done is what is reasonable in the circumstances.

Other forms of lawful restraint exist, although they are not arrest powers as such; for example, when a person is apprehended to be medically assessed pursuant to the *Mental Health Act 1986*. Arrest is not defined by the *Crimes Act 1958*, so the common law concept of what is meant by arrest governs its meaning and ambit. The elements of a lawful arrest can be thus specified.

[A.60] Elements of a lawful arrest

At common law, the three elements of a lawful arrest are:

- a sufficient act of arrest;
- informing the person being arrested (the arrestee) that he or she is under arrest; and
- informing the arrestee of the reason for the arrest.⁸

[A.80] A sufficient act of arrest

Actual physical restraint will provide a sufficient act of arrest, but an arrest may consist of an act whereby the arrestee is otherwise effectively deprived of his or her liberty.⁹ Traditionally, arrest consisted of the touching or seizure of a person's body with a view to detaining the person.¹⁰ Should the arrestee submit to the authority of the arrester, words or touching can be sufficient. If the arrester communicates to the arrestee that he or she is under arrest and the arrestee submits by words or conduct, for example, by accompanying a police officer to a vehicle or room, that is enough. In the absence of such submission, however, for example, where the arrestee absconds, there is no sufficient act of arrest.¹¹

[A.100] Communication of arrest

The arrestee must know that he or she is under compulsion to accompany the arrester for there to be a valid arrest. To achieve this, the arrester must do, by words or conduct, what is reasonable to communicate to the arrestee that he or she is under arrest. Conduct such as physically seizing the arrestee or pointing a gun at the person can achieve this result.

For words or simple touching to accomplish an arrest in the hope that submission will follow, the communication must be clear and unequivocal.¹² No specific words are required. Whether they in fact are sufficient will depend on the actual words spoken and the particular fact situation under consideration. As stated in *R v Inwood* [1973] 2 All ER 645¹³ by the Court of Appeal:

[T]here is no magic formula, only the obligation to make it plain to the suspect by what is said and done that he is no longer a free man.¹⁴

What then of an arrestee who is deaf and unable to lip-read, unable to speak English or for some other reason (for example, due to the effects of mental illness, alcohol or drugs) is unable to comprehend that he or she is being arrested. There will be a valid arrest if all that is reasonable in the circumstances has been done to communicate to the arrestee that he or she is under arrest.¹⁵

The *Victoria Police Manual* (VPM) contains instructions to police when taking a person into custody. These instructions reflect the common law.¹⁶ Despite being issued pursuant to statutory provision, *s 60 Victoria Police Act 2013*, the Victoria Police Manual does not have the force of statute.

... they are nevertheless of fundamental importance in our liberal democratic society because they reflect the principle that public officials must exercise coercive powers in a transparent and accountable manner.¹⁷

However, all members of Victoria Police must comply with these instructions¹⁸.

The policy set out in the VPM stresses that police have a broad discretion at law when deciding to arrest or not, and that there is the need to balance the rights of the individual against the need to take action to ensure the safety of persons or the need to take action against a person breaking the law¹⁹.

Note though that a breach of a provision of the VPM by a police officer does not, in and of itself, invalidate any action taken by the officer or result in him or her incurring liability to pay damages to a person who was affected by that action.²⁰

[A.120] Reason for arrest

It is both good sense and good law that the person arrested be told the reason for arrest.²¹ Apart from the right of a person to know why it is he or she is being deprived of their liberty, it also gives the person the chance to offer then and there any explanation which might result in their release from custody. Thus, the general requirement is that, for an arrest to be lawful and valid, the arrester

must tell the arrestee the reason for arrest.²² This requirement applies to arrests made pursuant to statutory powers of arrest, unless the particular legislation under consideration evinces a contrary intention. Therefore, the arrestee must inform the arrestee of the charge on which the arrest is being made, or at least the facts which are said to constitute a crime.²³ Technical language does not have to be used.²⁴ An arrest will moreover not become unlawful merely because the arrestee is subsequently charged with a different offence if the initial arrest was otherwise lawful.²⁵ A refusal to state the reason for arrest or a mis-statement of the reason, however, will seldom be justified and will usually result in the arrest being unlawful.²⁶

Quite apart from the obligation to inform a person arrested for the reason of arrest. The *Charter of Human Rights and Responsibilities Act 2006* provides in s 21(4) that a person arrested must also be promptly informed about any proceedings to be brought against him/her.

The common law is adopted by the *Victoria Police Manual*, which states that persons:

[A]rrested or to be arrested should be given an opportunity to establish their innocence or to explain the actions which form the basis of their arrest.²⁷

There are exceptions to the requirement on the part of the arrestee to inform the arrestee of the reasons for the arrest. These are:

- where the circumstances are obvious to the arrestee, for example, where the arrestee is apprehended in the process of committing a crime;²⁸
- where the arrestee's behaviour makes it impossible to do so, for example, where the person flees or violently resists;²⁹ and
- where the arrestee is unable to comprehend the reason as a result of mental illness, unconsciousness etc.³⁰

In situations such as these, it is still the duty of the arrestee to explain the reasons for arrest at the earliest reasonable opportunity after the arrest.³¹

Where the arrestee is not fluent in English, Victorian police are instructed by the *Victoria Police Manual* to obtain the services of an interpreter and again explain the reasons for arrest.³²

[A.140] Failure to comply with requirements of lawful arrest

Should there be a failure to comply with any of the requirements of a lawful arrest, the arrest may be found to be unlawful. The consequences that flow from an unlawful arrest will vary according to the circumstances of each case.³³ For an example of where a police officer was found to

have had no lawful justification for arrest and was convicted of unlawfully assaulting the person concerned, see *Kelly v Dann* (1992) 8 WAR 225.³⁴ In *Christie v Leachinsky* [1947] AC 573³⁵ the two appellants, both police officers with the Liverpool City Police force, were successfully sued for false imprisonment as a result of an unlawful arrest. Should a person use force to resist an unlawful arrest, the appropriateness of the person's response will be assessed in light of the circumstances of the case. The “right of citizens to resist unlawful arrest and search is as old as their inclination to do so”.³⁶ A person is entitled to use reasonable force to resist or escape³⁷ and, quite apart from creating criminal liability, an unlawful arrest may result in civil liability for assault and/or false imprisonment.³⁸

An arrest that is initially unlawful because of a failure to provide the reason for arrest may become lawful if the arrestee is subsequently so informed.³⁹ A detention that is unlawful may subsequently become lawful, depending on the factual circumstances.⁴⁰

The *Victoria Police Manual* stipulates that police members in plain clothes should produce their police identification card and that all arrests ought to be made in a manner that avoids any unnecessary humiliation and indignity to the arrestee.⁴¹

[A.160] Requests to go with police

A request by a police officer to accompany them to, for example, a police station will not normally amount to depriving the person of their liberty and thus will not be construed as an arrest. A suspect may accompany police as a result of respect for or fear of authority, or thinking that to refuse indicates guilt on their part. Should a suspect go in these circumstances, there is no deprivation of liberty. However, everything depends on the circumstances. If the circumstances are such that the words uttered, although in the form of an invitation or request, would convey to a reasonable person that he or she had no genuine choice as to whether to accompany the police officer it becomes incumbent upon the police officer to make it clear that the suspect is not under arrest and is free to refuse to accompany him or her, and in the absence of such an intimation, the apparent invitation or request may constitute an apprehension.⁴²

[A.180] The use of force to effect arrest: *Crimes Act 1958*, s 462A

The use of force to effect arrest is no longer governed by common law principles but is now enacted in statute.⁴³ Where a statute confers a power to apprehend it will generally be construed to connote the right to use reasonable force in effecting an arrest.⁴⁴ Section 462A⁴⁵ of the *Crimes Act 1958* provides that a person may use such force not disproportionate to the objective as he or she believes on reasonable grounds to be necessary to effect or assist in effecting the lawful arrest of a person committing or suspected of committing any offence. This section is not restricted to

police, but is generally applicable to arrests undertaken by anyone.⁴⁶ As the level of force used by a person to resist a lawful arrest increases, the increased use of force to effect the arrest will, accordingly, be justified. Any analysis of whether excessive force has been used needs to focus on the subjective belief of the arrestee. However, there must be reasonable grounds for that belief. Thus the section has an objective component to it. Hindsight is not the appropriate test.⁴⁷

Any assessment of the reasonableness of the conduct of the person effecting an arrest and the level of force used, needs to be approached in a realistic manner that takes into account that the person may be acting under pressure, an emergency or in a situation where fast decisions need to be made.⁴⁸

Handcuffs have long been used to effect the arrest of persons and to restrain them once arrested.⁴⁹ There is no general right to handcuff merely because an arrest has been made.⁵⁰ The right to handcuff must be found in some additional circumstance such as the necessity to prevent escape, preventing the commission of some further offence, or the endangering of the safety of persons or property. An arresting officer is entitled to take proper precautions when conveying a person in custody, and all the circumstances must be considered to determine whether there are reasonable grounds for the arresting officer to handcuff the prisoner.⁵¹

Victorian police are issued with other equipment such as capsicum spray, batons and firearms. In addition to [s 462A Crimes Act 1958](#), the use of these items and force generally are also spelt out in the *Victoria Police Manual*. The Operational Safety Principles, inter alia, stipulate that the use of force is to be avoided and that where the use of force cannot be avoided, members are to only use the minimum amount of force reasonably necessary⁵². The use by Police of other equipment including firearms, capsicum spray, and restraint techniques should only be used in line with Operational safety and tactics training (OSTT).⁵³

[A.200] Purpose of arrest

Should a person effecting an arrest not have the requisite state of mind as prescribed by the relevant legislation, or be effecting the arrest for a purpose not contemplated by the particular provision the arrest may be declared by a court to be unlawful.⁵⁴

Footnotes

- 1 [Trobridge v Hardy \(1955\) 94 CLR 147](#) at 152. See also [s 21 of the Charter of Human Rights and Responsibilities Act 2006](#). Police are not bound to arrest and have discretion not to do so. Victoria Police Policy is that proceeding by way of

summons is to be preferred where appropriate. See also *Victoria Police Manual Instructions* 113–1, “Arrest”.

Williams v The Queen (1986) 161 CLR 278; 60 ALJR 636; 28 A Crim R 1; 66 ALR 385 at 292 (CLR), 11 (A Crim R) per Mason and Brennan JJ.

For an example of the vicarious liability of an employer for the actions of an employee who procured the imprisonment of a customer, see *Myer Stores Ltd v Soo* [1991] 2 VR 597; [1991] Aust Torts Reports 81-077.

See Deane J in *Cleland v The Queen* (1982) 151 CLR 1; 57 ALJR 15; 43 ALR 619 at 26; Mason and Brennan JJ in *Williams v The Queen* (1986) 161 CLR 278; 60 ALJR 636; 28 A Crim R 1; 66 ALR 385 at 292 (CLR), 11 (A Crim R).

For the scope of the human right to liberty and security see *Kracke v Mental Health Review Board* [2009] VCAT 646 and *Woods v Director of Public Prosecutions* [2014] VSC 1.

Director of Public Prosecutions (Cth) v Polyukhovich (No 3) (1993) 170 LSJS 300.

R v O'Donoghue (1988) 34 A Crim R 397 at 401. See also *Director of Public Prosecutions v Dahl* (1997) 96 A Crim R 502.

See Gillies P, *The Law of Criminal Investigation* (LBC, Sydney, 1982), pp 144–153; Willis J, *The Laws of Australia* (LBC); Williams G, “Requisites of a Valid Arrest” [1954] Crim LR 6.

See *R v Lavery* (1978) 19 SASR 515 for an example of where the words used were a mere formality and the overall police conduct conveyed that there was no real choice but to accompany the police. In *Slaveski v Victoria* [2010] VSC 569, the sufficient act of arrest was the grabbing of Mr Slaveski’s jacket at [505] and [747].

Greenwood v Ryan (1846) Legge 275.

Police (NZ) v Thompson [1969] NZLR 513; *Dellit v Small; Ex parte Dellit* [1978] Qd R 303 at 304; Williams G, “Requisites of a Valid Arrest” [1954] Crim LR 6 at 11.

See *Alderson v Booth* [1969] 2 QB 216.

R v Inwood [1973] 2 All ER 645.

R v Inwood [1973] 2 All ER 645 at 653. See also *Alderson v Booth* [1969] 2 QB 216.

Wheatley v Lodge [1971] 1 WLR 29 (a deaf person unable to lip read); *Tims v John Lewis & Co Ltd* [1951] 2 KB 459 (a person hard of hearing); *Hull v Nuske* (1974) 8 SASR 587 (intoxication).

Victoria Police Manual, Ch “Arrest and warrants for arrest”.

Slaveski v Victoria [2010] VSC 441, per Kyrou J.

Victoria Police Act 2013, s 61.

See *Victoria Police Manual*, Ch “Arrest and warrants for arrest”.

- 20 *Slaveski v Victoria* [2010] VSC 441 at [208].
- 21 Gillies P, *The Law of Criminal Investigation* (1982, LBC, Sydney), p 149. See
- 22 also s 21(4) of the *Charter of Human Rights and Responsibilities Act 2006*.
- 23 *Christie v Leachinsky* [1947] AC 573. For a review of authorities applying
- 24 *Christie v Leachinsky* see *Adams v Kennedy* (2000) 49 NSWLR 78; [2000]
- 25 NSWCA 152.
- 26 *Christie v Leachinsky* [1947] AC 573.
- 27 *Christie v Leachinsky* [1947] AC 573 at 581.
- 28 *Christie v Leachinsky* [1947] AC 573 at 593 per Lord Simonds.
- 29 See *Christie v Leachinsky* [1947] AC 573; *Hortin v Rowbottom* (1993) 61 SASR
- 30 313; 68 A Crim R 381.
- 31 *Victoria Police Manual*, Ch “Arrest and warrants for arrest”, 1.3.
- 32 *Christie v Leachinsky* [1947] AC 573.
- 33 *Brazil v Bielefeld; Ex parte Bielefeld* [1964] QWN 5.
- 34 *Wheatley v Lodge* [1971] 1 WLR 29; *Hull v Nuske* (1974) 8 SASR 587.
- 35 *Christie v Leachinsky* [1947] AC 573.
- 36 *Victoria Police Manual Instructions*, Ch “Arrest and warrants for arrest”, 1.3.
- 37 See *Nevill v Halliday* [1983] 2 VR 553. In *R v Stafford* [1976] 13 SASR 392 the
- 38 failure to inform the accused of the fact of and grounds for arrest contributed to
- 39 the exclusion of his record of interview.
- 40 *Kelly v Dann* (1992) 8 WAR 225.
- 41 *Christie v Leachinsky* [1947] AC 573.
- 42 *Nguyen v Elliot* (unreported, Sup Ct, Victoria, Hedigan J, 6 February 1995), p 9.
- 43 *McLiney v Minster* [1911] VLR 347.
- 44 See, for example, *Shaw v Keyte* (unreported, County Ct of Victoria, Ravee J,
- 15 April 1997), in which four police officers and the State of Victoria were
- sued for false imprisonment and assault. They were ordered to pay \$50,000 in
- compensatory and aggravated damages where it was found that there had been
- no reasonable grounds for apprehension of the plaintiff under s 458(1) of the
- Crimes Act 1958*. Police have an obligation to be aware of the limitations of arrest
- powers see *R v Grimley* (1994) 121 FLR 236 at 253.
- 39 *R v Kulynycz* [1971] 1 QB 367.
- 40 *R v Banner* [1970] VR 240; *R v Michaels* (1995) 80 A Crim R 542.
- 41 *Victoria Police Manual Instructions*, Ch “Arrest and warrants for arrest”, 1.3.
- 42 *Slaveski v Victoria* [2010] VSC 441 at [1167] and [1168].
- 43 *R v Conley* (1982) 30 SASR 226 at 240; *R v S & J* (1983) 32 SASR 174; *R v*
- 44 *Leecroft* (1987) 46 SASR 250 at 253; *R v Edmunds* (1998) 199 LSJS 448.
- Crimes Act 1958*, s 462A.
- R v Kulynycz* [1971] 1 QB 367; *R v Turner* [1962] VR 30.

- 45 Section 462A does not confer a power of arrest: *Slaveski v Victoria* [2010] VSC 441 at [122], per Kyrou J. For a comprehensive analysis of the section and its history see *Gebrehiwot v Victoria* [2020] VSCA 315 at [95]-[113].
- 46 This second limb of s 462A has been held to be confined to situations where the arrest is effected contemporaneously with the commission or suspected commission of an offence and does not apply to an arrest effected under s 459(1) (a). See *Slaveski v Victoria* [2010] VSC 441 at [123] ff.
- 47 *Woodley v Boyd* [2001] NSWCA 35.
- 48 *Walker v Hamm* [2008] VSC 596; *Woodley v Boyd* [2001] NSWCA 35, *McIntosh v Webster* (1980) 43 FLR 112; *Slaveski v Victoria* [2010] VSC 441, per Kyrou J.
- 49 Handcuffs have long been used if necessary to prevent the escape of the person arrested: see *Wright v Court* (1825) 4 B & C 596; 107 ER 1182; *Levy v Edwards* (1823) 1 C & P 40; 171 ER 1094; *Osborn v Veitch* (1858) 1 F & F 317; 175 ER 744; *Leigh v Cole* (1853) 6 Cox CC 329; For judicial criticism of Police who have unnecessarily handcuffed an arrestee see *R v Stafford* (1976) 13 SASR 392 at 301 per Bray CJ; *Victoria v McIver* (2005) 11 VR 458; [2005] VSCA 50.
- 50 See *Gebrehiwot v Victoria* [2020] VSCA 315 at [111].
- 51 *Perkins v County Court (Vic)* (2000) 2 VR 246; 115 A Crim R 528; [2000] VSCA 171 at 267 (VR), 549 (A Crim R); *Kumar v Minister for Immigration, Local Government & Ethnic Affairs* (1991) 28 FCR 128, per Lockhart J, where handcuffing was held to be unreasonable in the circumstances, but not to vitiate an existing lawful arrest..
- 52 *Victoria Police Manual*, Ch “Use of Force Rules and Responsibilities”.
- 53 *Victoria Police Manual*, Ch “Use of Force Rules and Responsibilities”.
- 54 *Drymalik v Feldman* [1966] SASR 227; *Re Leary*; *Ex parte Evers* (1945) 62 WN (NSW) 147; *Woodley v Boyd* [2001] NSWCA 35.